

		<u>Meet and Confer</u> Plaintiff contends that no response to the 12/16/25 meet and confer letter was received. However, Defendants' counsel's declaration establishes that a response was emailed on 12/29/25. That email asked Plaintiff for further clarification on the asserted deficiencies in Defendants' responses. Thus, Plaintiff's contention that no response was ever received and that Plaintiff fully met and conferred in good faith appears to be without merit. As shown herein, Plaintiff's motions as to the FROGs have no merit. Further, while Plaintiff may have been right to file the motions as to the demands for production based on Defendants' failure to provide a document production before the motions were filed, Defendants' counsel's email in response to Plaintiff's meet and confer letter advised that the documents would be produced within the next few weeks. Defendants were not refusing to provide responsive documents and if Plaintiff had engaged in a reasonable and good faith attempt to resolve these issues before filing, these motions could have been avoided. Monetary sanctions may be imposed against Plaintiff for the failure to conduct a reasonable and good faith attempt to resolve the issues informally, even if Plaintiff's motions are successful. (Code Civ. Proc., § 2023.020 ["Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."].) Although some meeting and conferring was attempted, it does not appear Plaintiff made a reasonable attempt to resolve the issues raised in these motions informally. Although the court will not award sanctions against Plaintiff <i>at this time</i>, any future failure to fully comply fully with the meet and confer requirements may result in the granting of requested sanctions in the future. Moving party to give notice.
9.	30-2022-01296297 Atkins vs. TLH Enterprises, LLC	1. Motion to Compel Production Hearing CONTINUED to 08/27/26 at 1:30 pm in C34. ***This matter appears from the briefing to be before the discovery referee. If the referee rules on this issue, the hearing before the Court will be taken off calendar. (Please file a copy of the referee's report/ruling prior to the hearing date.) ***However, if this matter is <i>not</i> before the discovery referee, or if the referee determines they are not going to rule on this issue, THEN this hearing on 10/8/26 will move forward, and then any Opposition(s) (referred to in Plaintiff's reply brief ROA #817) must be filed with <i>this</i> court at least 9 days before the hearing. Plaintiff has already filed a Reply Brief, so no additional briefing will be accepted. Clerk to give Notice.